

## CHAPTER 98.

An Act relating to the Union of Benefices.

[23rd December 1919.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and, by the authority of the same, as follows:

**1.** Whenever it shall appear to the Ecclesiastical Commissioners, whether on their own motion or any representation made to them, that inquiry ought to be made as to the desirability of uniting two or more benefices, or one or more benefice or benefices, and one or more sinecure or sinecures, being either in the same parish or neighbouring to each other, they may address a request to the Bishop of the diocese, in which that one of those benefices which has the largest population shall be situate, to cause a commission to be issued under his hand and seal addressed to the persons to be nominated as in the next section mentioned, authorising and requiring them to inquire and report to him whether such union may, with advantage to the interests of religion, be made, and to inquire into and report on all such matters in anywise affecting such union, or connected therewith, as they may deem necessary, and to recommend terms for effecting any union in favour of which they report, including the regulation of the course and succession in which the patrons (if there be more than one patron) shall present or nominate to the united benefice from time to time as the same shall become vacant. The Bishop shall thereupon issue the commission, and the commissioners shall thereupon make a local inquiry in the prescribed manner as to the matters referred to them.

Bishop on request of Ecclesiastical Commissioners to issue commission as to union of neighbouring benefices.

**2.**—(1) Of the commissioners one shall be nominated by the Bishop of the diocese in which the benefice or benefices, and sinecure or sinecures (if any) affected by the proposed inquiry are situate, or in case the benefices are situate in more than one diocese then jointly by the Bishops of those dioceses; one shall be nominated by the patron or, if there shall be more than one patron, jointly by the patrons of the benefice or benefices and sinecure or sinecures affected; one shall be nominated by the churchwardens (if any) of the benefice or benefices affected or by the major part of them; and the remaining commissioner (who shall act as chairman and shall have a casting vote in addition to his vote as a commissioner) shall be nominated by the Ecclesiastical Commissioners.

Commission, how to be nominated.

(2) Provided that, if the Bishop of the diocese in which any benefice or sinecure affected by the proposed inquiry is situate shall also be the sole patron of that benefice or sinecure, the right of nomination by the Bishop in his capacity of patron shall be exercised by the patron or patrons of the other benefice or benefices affected.

Proviso.

(3) Provided also that, if the Bishop of the diocese in which each of the benefices or sinecures affected is situate shall be the sole patron of that benefice or sinecure, there shall be no commissioner nominated by the patrons.

(4) If for a period of thirty days after being requested in writing by the Bishop to nominate a commissioner the patron or patrons or the churchwardens or the major part of them shall refuse or neglect so to do, his or their right of nomination shall lapse, and the commission shall be issued and shall be valid for all purposes notwithstanding any such lapse.

Power to Lord  
Chancellor to  
make rules.

3. The Lord Chancellor, with the advice and assistance of the Ecclesiastical Commissioners, may make rules for prescribing anything which under this Act is to be prescribed and in particular for—

- (i) regulating the place and time of the sittings of the commissioners, and as to the quorum necessary ;
- (ii) the taking of evidence, and hearing by the commissioners of objections ;
- (iii) the notices (if any) to be given of their sittings to the incumbents, patrons, churchwardens or other persons interested, and the service of such notices ;
- (iv) the filling of vacancies in the number of commissioners, and the time within which the commissioners are to make their report ;
- (v) the payments (if any) to be made towards the costs and expenses incurred in the matter by any Bishop or by the Ecclesiastical Commissioners, or by the commissioners or the persons appearing before them ;
- (vi) the registration and inspection in the diocesan registries or elsewhere of Orders in Council made under this Act ;
- (vii) the fees to be paid to diocesan or other officials ; and
- (viii) generally as to all matters and things incidental to or connected with the holding of local inquiries, appeals to His Majesty in Council, and the publication or registration of draft schemes, schemes, or orders made under this Act.

Bishop to  
transmit report  
of commis-  
sioners to  
Ecclesiastical  
Commissioners,  
who are to  
propose  
scheme.

4.—(a) The Bishop receiving a report under this Act shall cause the same, or a copy thereof, to be transmitted to the Ecclesiastical Commissioners, who shall, if the Commissioners making the report shall unanimously or by a majority of votes recommend a union, and if the Bishop of the diocese or the Bishops of the dioceses affected shall signify in writing his or their approval of the report, but not otherwise, cause to be prepared a scheme based upon the terms recommended for effecting the proposed union, which scheme may, with the assent of the Bishop of the diocese or the Bishops of the dioceses affected, embody any modification of the proposals.

(b) Drafts of such proposed scheme shall be published locally in the prescribed manner, and also be transmitted in the prescribed manner to the patron or patrons affected, together with a notice in each case requiring any objections to such draft scheme to be stated or transmitted in writing to the Ecclesiastical Commissioners within the prescribed time.

Draft scheme to be published locally.

Objections.

(c) After giving full consideration to such objections (if any), and after making such alterations (if any) in the draft scheme as, having regard to such objections, they shall deem right, and after submitting such alterations (if any) to the Bishop of the diocese or the Bishops of the dioceses affected, and obtaining his or their consent thereto in writing, the Ecclesiastical Commissioners (unless, after full consideration, they shall think it advisable to withdraw the scheme) shall certify the scheme, and the consent thereto in writing of the Bishop of the diocese or the Bishops of the dioceses affected, to His Majesty in Council.

Ecclesiastical Commissioners to certify final scheme to the King in Council.

5.—(1) After the scheme and consent shall have been certified as aforesaid public notice of such certification shall be given in the prescribed manner and within the prescribed time, and any person who has, in accordance with this Act, made objection to the draft scheme may appeal to His Majesty in Council against the scheme, or any part thereof.

Appeals to His Majesty in Council.

(2) If no appeal is so made within the period of one month after the date of the said public notice, it shall be lawful for His Majesty in Council to make and issue any order or orders for affirming the scheme, and for uniting the benefices and parishes proposed to be united to the extent and for the purposes recommended in the scheme.

(3) If any appeal is so made, His Majesty in Council may order and direct that such appeal shall be heard by the Judicial Committee of the Privy Council and the said Judicial Committee shall make report to His Majesty in Council thereupon and may propose to His Majesty in Council to affirm, vary, or dismiss the scheme certified by the Ecclesiastical Commissioners or to return the same to the Ecclesiastical Commissioners for alteration or amendment and His Majesty may affirm, vary, or dismiss the scheme accordingly or return the same to the Ecclesiastical Commissioners to be reconsidered as to any parts thereof.

6. Every scheme under this Act for the union of any benefices shall recommend that the benefices proposed to be united shall become permanently united together and form one benefice with cure of souls, and either (a) that the parishes or places of which the benefices proposed to be united shall consist shall be united into one parish for ecclesiastical purposes and for such other purposes as in this Act provided, or (b) that such parishes or places shall continue distinct in all respects except as provided by this Act. Every such scheme, if the united benefice shall be in more than one diocese, shall determine to which diocese the united benefice shall belong.

Scheme to determine whether or not parishes shall remain distinct.

Parsonage  
house of united  
benefice.

**7.** Every scheme under this Act for the formation of an united benefice, if more than one parsonage house shall be left standing or remaining within or belonging to the united benefice, shall determine which house shall be the parsonage house of the united benefice, but, if only one parsonage house shall be left standing, such house shall be the parsonage house of the united benefice.

Parish church  
of united  
parish.

**8.** Every scheme under this Act for the formation of an united parish shall, if more than one church shall be left standing or remaining within the united parish, also determine which church shall be the parish church, but, if only one church shall be left standing, such church shall be the parish church of the united parish.

Union of Benefices Acts  
Amendment Act, 1871, to  
apply to church and churchyard  
of benefice united under  
this Act,  
34 & 35 Vict.  
c. 90.

**9.** After completion of an union of benefices the Union of Benefices Acts Amendment Act, 1871, shall apply to the united benefice as regards any church within the united benefice not directed by the scheme to be pulled down, and the churchyard of any such church.

Scheme to  
define contingency on  
which union is  
to take effect  
and may contain provisions  
as to appointments of in-  
cumbents  
pending union.

**10.**—(1) In any scheme for union prepared under this Act the Ecclesiastical Commissioners shall define the event or contingency on the happening of which the union is to take effect, but not so as to postpone the union later than the date of the first avoidance of that one of the benefice or benefices, sinecure or sinecures, proposed to be united which shall last be avoided after the publication of the order or orders in the London Gazette relating to the same.

(2) The Ecclesiastical Commissioners may, if they think fit, insert in the scheme provisions requiring that in any case in which the benefice or benefices and sinecure or sinecures (if any) proposed to be united are not at the date of the registration of such order or orders all held by the same incumbent, then on any avoidance before the happening of the event, or contingency, the patron of the vacant benefice or sinecure shall be bound to present, or nominate, and the bishop shall be bound to admit and institute, or license to the vacant benefice or sinecure, the incumbent of the other, or one of the other benefices, sinecure or sinecures, proposed to be united.

Ecclesiastical  
Commissioners  
may decide  
doubtful  
questions of  
patronage.

**11.** If in any case it shall, in the opinion of the Ecclesiastical Commissioners, be doubtful what person or corporation is the patron for the purposes of this Act, it shall be lawful for the Ecclesiastical Commissioners to decide the question, and their decision shall be conclusive.

Supplemental  
schemes for  
uniting  
parishes of  
united benefices.

**12.**—(1) If after an union of benefices, whether made under this Act or not, it shall appear desirable to the Ecclesiastical Commissioners, whether on their own motion or on any representation made to them—

(a) that in the case of an united benefice, of which the parishes shall not have been united, those parishes,

or any two of them, should be united for ecclesiastical purposes, and for such other purposes as in this Act provided; or

(b) that in the case of an united benefice, of which the parishes shall have been united, some other church situate within the united benefice shall be substituted for the parish church of the united parish; or

(c) that in the case of an united benefice, of which the parishes shall not have been united, some other church situate within any parish forming part of the united benefice shall be substituted for the parish church of that parish,

they may request the Bishop of the diocese in which the united benefice shall be situate to cause a commission to be issued to commissioners to inquire into and report upon the desirability of those parishes being so united, or such substitution being made, as the case may be, and upon all matters arising from any union of parishes or substitution of a church which they may recommend.

(2) The Bishop shall thereupon issue the commission to commissioners appointed in like manner as commissioners nominated or appointed to inquire into and report upon a proposed union of benefices under this Act, and the same consequences, *mutatis mutandis*, as to the inquiry and report by such commissioners, the preparation, publication, and certification to His Majesty in Council of a scheme to give effect to the report, the issuing of an Order or Orders by His Majesty in Council, and the registration and validity thereof shall follow as in the case of commissioners having been appointed under this Act to inquire into and report upon a proposed union of benefices.

**13.**—(1) In administering the fund to be provided by the Ecclesiastical Commissioners for expenses under this Act, the Ecclesiastical Commissioners shall cause a separate account to be kept for each diocese, and all moneys received for or appropriated to the said fund shall be credited to the account of the diocese in which the benefice or sinecure from the property or revenues of which such moneys arise shall be situate, and the moneys so credited to the account of any diocese shall not be applicable to the payment of any expenses except expenses incurred or to be incurred in relation to proposals and schemes affecting benefices or sinecures in that diocese.

Administra-  
tion of ex-  
penses fund.

(2) After providing and appropriating to the credit of any diocese a fund sufficient in their opinion to meet all expenses already incurred or to be incurred under this Act in relation to that diocese, the Ecclesiastical Commissioners shall, with the consent in writing of the Bishop, apply the surplus of the moneys so set apart for the benefit of any benefice or benefices in that diocese to whose benefit the Ecclesiastical Commissioners may with such consent think fit to apply the same.

(3) In case at any time, or from time to time, the moneys standing to the credit of a diocese under this section shall not be sufficient to pay the expenses incurred in relation to a proposal or scheme affecting a benefice or sinecure in that diocese, the Ecclesiastical Commissioners may, if they think fit, pay such expenses, or any part thereof, out of their common fund.

Bishop may give direction as to services in church not being parish church.

Bishop may require nomination of curate.

14. It shall be lawful for the Bishop from time to time to direct that services shall or shall not be held in any church in a benefice united under this Act or otherwise not being a parish church.

48 & 49 Vict.  
c. 54.

15. In any case in which the affirmed scheme shall recommend the appointment of a curate to assist in performing the duties of the united benefice, the Bishop shall have the like powers of requiring the nomination of and of appointing and licensing a curate, and of assigning a stipend to such curate as he would have under section thirteen of the Pluralities Act Amendment Act, 1885, in the cases therein mentioned, subject nevertheless to the like right of appeal as is provided under that section, but without regard to the annual value or population of the united benefice.

Repeals.  
1 & 2 Vict.  
c. 106.

16. Sections sixteen to twenty (inclusive) of the Pluralities Act, 1838, are hereby repealed, but this repeal shall not affect any proposed union in respect of which a statement of facts or copy representation shall, before the passing of this Act, have been published pursuant to section sixteen of the Pluralities Act, 1838, nor any future union under the last-mentioned Act of any benefice or sinecure situate in the metropolis within the meaning of the Union of Benefices Act, 1860, with any benefice or sinecure situate outside the metropolis.

23 & 24 Vict.  
c. 142.

Incorporation of certain enactments.

17. The sections of the Acts specified in the first column of the Schedule to this Act, of which the numbers and marginal notes are respectively set forth in the second and third column of that schedule, are hereby incorporated with and form part of this Act, and the said sections shall, so far as applicable, extend and apply to unions of benefices under this Act as fully and effectually as if such sections had been re-enacted subject to the modifications set out in the fourth column of that schedule.

Definitions.

18. In this Act, unless the context otherwise requires:—

The expression "benefice" shall be understood and taken to mean benefice with cure of souls and no other, and shall comprehend all parishes, perpetual curacies, endowed public chapels, parochial chapelries, and chapelries or districts belonging to or reputed to belong or annexed or reputed to be annexed to any church or chapel, anything in any other Act to the contrary notwithstanding;

The expression "sinecure" means a spiritual sinecure, rectory or vicarage;

The expression "union of benefices" means an union of two or more benefices, or of one or more benefice or benefices, and one or more sinecure or sinecures under this Act, whether or not the parishes or places to which such benefices belong shall be united, and the expression "united benefice" has a corresponding meaning ;

The expression "united parish" means the parishes or places which in consequence of an union of benefices shall have become united for ecclesiastical purposes under this Act ;

The expression "the commissioners" means the commissioners nominated under this Act ;

The expression "patron," with reference to any benefice or sinecure, has the same meaning *mutatis mutandis* as in the Ecclesiastical Dilapidations Act, 1871, but so that the word "present" in section three of that Act shall be read as meaning "present or nominate" ; 34 & 35 Vict. c. 43.

The expression "Bishop," in relation to the diocese of an Archbishop, includes the Archbishop ;

The expression "prescribed" means prescribed by rules made in pursuance of this Act.

19. From and after the passing of this Act it shall not be lawful to unite two or more benefices into one benefice in any other manner than is hereinbefore provided, but nothing in this Act shall affect any union to be made under the powers of any Act applying only to a particular locality or to particular localities. Benefices not to be united except under Act.

20.—(1) This Act may be cited as the Union of Benefices Act, 1919. Short title and extent.

(2) Nothing in this Act shall affect or apply to any benefice or sinecure situate in the metropolis within the meaning of the Union of Benefices Act, 1860.

(3) No commission shall be issued under this Act after the thirty-first day of December nineteen hundred and twenty-one.

## SCHEDULE.

Section 17.

### ENACTMENTS INCORPORATED.

| Act.                          | Section | Marginal Note.                                                               | Modification.                                                                                                                                                       |
|-------------------------------|---------|------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Union of Benefices Act, 1860. | 10      | Part of a benefice or united benefice may be severed and included in scheme. | The words "And whenever" in this Act" and remainder of section following those words shall be omitted, and there shall be substituted "the " patron of any benefice |

| Act.                                       | Section. | Marginal Note.                                                                                                             | Modification.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|--------------------------------------------|----------|----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Union of Benefices Act, 1860— <i>cont.</i> |          |                                                                                                                            | <p>“ of which it is proposed<br/> “ to sever a portion<br/> “ under this Act shall<br/> “ have the like right of<br/> “ nominating or joining<br/> “ in the nomination of<br/> “ one of the commis-<br/> “ sioners as he would<br/> “ have had if the entire<br/> “ benefice were the sub-<br/> “ ject of an inquiry<br/> “ under this Act.”</p>                                                                                                                                                                                                                                                                                                                                                     |
|                                            | 11       | Surplus revenue of united benefice may be annexed as an endowment to any other benefice in the Metropolis or its vicinity. | <p>For “benefices” wherever that word occurs, there shall be substituted “benefice or benefices sinecure or sinecures.”</p> <p>For “specified benefice in the Metropolis or in the vicinity thereof” there shall be substituted “benefice in the same diocese as the benefice or benefices, sinecure or sinecures, to which the endowments to be charged or transferred shall belong.”</p> <p>The words “of the vestries of the parishes to be affected thereby and” shall be omitted.</p> <p>After “the diocese” there shall be inserted “or the bishops of the dioceses.”</p> <p>The words “Provided that the amount” and the remainder of the section following those words shall be omitted.</p> |
|                                            | 13       | Orders in Council to be published in the “Gazette” and registered, and to have force of law.                               | <p>After “diocese” there shall be inserted “to which the united benefice shall be determined to belong.”</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|                                            | 14       | Scheme may provide for erection of new church or parsonage, removal of old church or parsonage, sale of site, &c.          | <p>For “church of the united benefice” there shall be substituted “church of the united parish, or one of the churches of the united benefice in case the same shall not be an united parish.”</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |



| Act.                                       | Section. | Marginal Note.                                                                                                                                                | Modification.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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| Union of Benefices Act, 1860— <i>cont.</i> |          |                                                                                                                                                               | The words "provided<br>" always" and the re-<br>mainder of the section<br>following those words<br>shall be omitted, and<br>the following words<br>shall be inserted: "Pro-<br>" vided that no scheme<br>" made under this Act<br>" shall authorise the<br>" pulling down of any<br>" church not being<br>" situate within a<br>" city or municipal<br>" borough."                                                                                                                                                             |
|                                            | 15       | Schemes to be laid<br>before Parlia-<br>ment.                                                                                                                 | After "Provided always<br>" that" there shall be<br>inserted "in case one or<br>" more of the benefices<br>" to be united shall be<br>" situated in a city or<br>" municipal borough."                                                                                                                                                                                                                                                                                                                                         |
|                                            | 17       | Site of church<br>pulled down not<br>to be sold or let<br>without certain<br>consents.<br>Removal of re-<br>mains of persons<br>interred and of<br>monuments. | After "churchwardens of<br>" the united parish"<br>there shall be inserted<br>" or if the parishes<br>" shall not be united of<br>" one of the church-<br>" wardens of the church<br>" to be pulled down."<br>After "church to be con-<br>" stituted the church of<br>" the united parishes"<br>there shall be inserted<br>" or if the parishes<br>" shall not be united,<br>" the other church, or<br>" if there shall be more<br>" than one other church,<br>" one of the other<br>" churches, of the united<br>" benefice." |
|                                            | 20       | Estates, &c., of<br>parishes united<br>to remain distinct<br>as before union,<br>except as affected<br>by this Act, &c.                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|                                            | 21       | Property belonging<br>to separate par-<br>ishes how to be<br>applied.                                                                                         | After "except that" there<br>shall be inserted "in the<br>" case of an united<br>" parish."                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|                                            | 22       | Fund for payment<br>of expenses of<br>carrying Act into<br>execution.                                                                                         | After "they shall" there<br>shall be inserted "in<br>" respect of each dio-<br>" cese."                                                                                                                                                                                                                                                                                                                                                                                                                                        |

| Act.                                | Section. | Marginal Note.                                                                                            | Modification.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
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| Union of Benefices Act, 1860 —cont. |          |                                                                                                           | <p>After “scheme and order “under this Act” there shall be inserted “affecting a benefice or “sinecure in that diocese.”</p> <p>After “the whole or such portion” there shall be inserted “if any.”</p> <p>The expression “they may “think proper” shall be substituted for the expression “they may “think sufficient.”</p> <p>After “all the proposals “and schemes” there shall be omitted “for “the union of benefices,” and there shall be inserted “affecting “any benefice or sinecure in that diocese.”</p> <p>After “proposed union” there shall be omitted “of benefices,” and there shall be inserted “affecting any benefice or “sinecure in that diocese.”</p> <p>The words “And after “providing a sufficient “fund” and the remainder of the section following those words shall be omitted.</p> |
|                                     | 23       | Scheme to be valid notwithstanding informalities or omissions.                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|                                     | 25       | Supplemental orders may be made.                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|                                     | 26       | Bishop may prepare a scheme as to lectures customarily preached in churches which may be pulled down, &c. | The words “and by the “vestries of the parishes “affected thereby” shall be omitted wherever those words occur.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|                                     | 27       | Bishop of diocese may direct churches to be reseatd, &c.                                                  | For “in the city or town” there shall be substituted “in the neighbourhood.”                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

| Act.                                         | Section. | Marginal Note.                                                                                           | Modification.                                                                                  |
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| Union of Benefices Act, 1860— <i>cont.</i>   | 28       | Appropriation of seats in church of united parish.                                                       | After "union of benefices" there shall be inserted " in which the parishes " shall be united." |
|                                              | 29       | Property to be sold shall vest in Ecclesiastical Commissioners and church of united parish in incumbent. |                                                                                                |
|                                              | 30       | Disunion of united benefices, 1 & 2 Vict. c. 106.                                                        |                                                                                                |
| Union of Benefices Acts Amendment Act, 1871. | 4        | Site of disused church to be preserved. Burials.                                                         |                                                                                                |

## CHAPTER 99.

An Act to make further provision for the better housing of the people, to authorise the acquisition of land for the development of garden cities or for the purposes of town-planning schemes, and to make further provision with respect to the borrowing powers of public authorities and bodies and with respect to the securities issued by them. [23rd December 1919.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subject to the provisions of this Act, the Minister of Health (in this Act referred to as "the Minister") may, in accordance with schemes made by him with the approval of the Treasury, make grants out of moneys provided by Parliament to any persons or bodies of persons constructing houses. Provision for payment of money to persons constructing

(2) Grants under this section shall be made only in respect of houses—

- (a) which comply with the conditions prescribed by the Minister and are in material accordance with the conditions as to the number of houses per acre and the standards of structural stability and sanitation approved by the Minister in the case of any scheme